

Calendar Lines 5-6

Case Name: *Z.G. v. Google, LLC*

Case No.: 25CV468773

This action arises out of defendant Google, LLC's ("Defendant" or "Google") allegedly harmful conduct directed toward minors.

Before the Court is Google's demurrer to the Complaint, which is opposed by Plaintiff Z.G. ("Plaintiff"). Google has filed a reply and a notice of supplemental authority, which the Court has considered. Also before the Court is Z.G.'s counsel's application for admission pro hac vice.

As discussed below, the Court OVERRULES Defendant's demurrer in its entirety. The Court GRANTS the application for admission pro hac vice.

XIV. BACKGROUND

According to the allegations of the Complaint, Google sells Chromebook computers and related products to schools for use by the children attending those schools. (Complaint, ¶ 1.) Google's products for schools include Google Chromebooks, the ChromeOS operating system, Chrome browser, the Google Workspace for Education suite of applications that are used by students, and the Admin Console, a suite of administrative tools that are available to school personnel. (Complaint, ¶ 4.) Plaintiff alleges that these products are defective because they allow children unfettered and unsupervised access to the open Internet. (Complaint, ¶ 6.) Google did not inform Plaintiff's parents about the dangers of its products. (Complaint, ¶¶ 133-134.)

Due to Google's alleged failure to design its products with the safety of children in mind, Plaintiff, then a 10-year-old fifth grade student used her school issued Chromebook to create an account on the online communication platform, Discord. (Complaint, ¶¶ 14-15.) On Discord, Plaintiff was targeted by someone using the username lil_pain. (Complaint, ¶ 16.) Plaintiff and lil_pain began messaging, lil_pain sent Plaintiff sexually explicit messages, and ultimately, the two engaged in sexual roleplaying. (Complaint, ¶¶ 140-142, 144.)

Based on the foregoing, Plaintiff initiated this action on June 20, 2025, with the filing of the operative Complaint, which asserts the following causes of action: (1) strict liability – product design, (2) strict liability – failure to warn, (3) negligence – design, (4) negligence – failure to warn, (5) negligence.

XV. DEMURRER

Defendant demurs to each cause of action in the Complaint on the grounds that it is immune from suit under section 230 of title 47 of the United States Code ("section 230") and that each cause of action fails to state a cause of action upon which relief can be granted. (Code Civ. Proc., § 430.10, subd. (e).)

A. Requests for Judicial Notice

Google requests judicial notice of the following documents:

- (1) The Complaint filed in *Z.G. v. Bakersfield City School District, et al.*, No. BCV-25-102397 (Superior Court of the State of California, County of Kern, June 27, 2025): Exhibit A;
- (2) Aleeya Fitzgerald, District Discord: How predators are reaching students on school-issued laptops, KGET News (February 13, 2024), <https://www.kget.com/news/local-news/district-discord-how-bcsd-allowed-an-online-platform-without-notifying-parents/>: Exhibit B.

With regard to Exhibit A, it is a court record and the proper subject of judicial notice. (See Evid. Code, § 452, subd. (d) [Judicial notice may be taken of “records of (1) any court of this state or (2) any court of record in the United States or of any state of the United States.”].) However, judicial notice may be taken of the documents existence and filing and not of the truth of its contents. (See *Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 79-81.) As to Exhibit B, it is a news article referenced in the Complaint. The Court GRANTS judicial notice of Exhibit A but denies judicial notice of Exhibit B as it appears that Google is seeking judicial notice for the truth of the contents of the news article. (See *Kashian v. Harriman* (2002) 98 Cal.App.4th 892, 900, fn. 3 [taking judicial notice of existence of news articles but declining to notice truth of the contents].)

Plaintiff requests judicial notice of Google’s “Learn About Chromebooks for Schools” webpage on the Google for Education website: Exhibit 1. Plaintiff contends that she is not seeking judicial notice of the content of the website but only its existence. Accordingly, the Court GRANTS judicial notice of Exhibit 1.

B. Legal Standard

The function of a demurrer is to test the legal sufficiency of a pleading. (*Trs. Of Capital Wholesale Elec. Etc. Fund v. Shearson Lehman Bros.* (1990) 221 Cal.App.3d 617, 621.) Consequently, “[a] demurrer reaches only to the contents of the pleading and such matters as may be considered under the doctrine of judicial notice.” (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732, internal citations and quotation marks omitted; see also Code Civ. Proc., § 430.30, subd. (a).) “It is not the ordinary function of a demurrer to test the truth of the plaintiff’s allegations or the accuracy with which he describes the defendant’s conduct. ... Thus, ... the facts alleged in the pleading are deemed to be true, however improbable they may be.” (*Align Technology, Inc. v. Tran* (2009) 179 Cal.App.4th 949, 958, internal citations and quotation marks omitted.)

In ruling on a demurrer, the allegations of the complaint must be liberally construed, with a view to substantial justice between the parties. (*Glennen v. Allergan, Inc.* (2016) 247 Cal.App.4th 1, 6.) Nevertheless, while “[a] demurrer admits all facts properly pleaded, [it does] not [admit] contentions, deductions or conclusions of law or fact.” (*George v. Automobile Club of Southern California* (2011) 201 Cal.App.4th 1112, 1120.)

C. Discussion

Defendant argues that the entirety of the Complaint is barred by section 230, part of the Communications Decency Act of 1996 (“CDA”). It further contends that each cause of action fails to state a claim.

1. The Communications Decency Act of 1996 (47 U.S.C. § 230)

Section 230, subdivision (c)(1) states that “[n]o provider or user of an interactive computer service shall be treated as the publisher or speaker of any information provided by another information content provider.” Section 230 “precludes courts from entertaining claims that would place a computer service provider in a publisher’s role. Thus, lawsuits seeking to hold a service provider liable for its exercise of a publisher’s traditional editorial functions—such as deciding whether to publish, withdraw, postpone or alter content—are barred.” (*Hassell v. Bird* (2018) 5 Cal.5th 522, 536 (*Hassell*), quoting *Zeran v. America Online, Inc.* (4th Cir. 1997) 129 F.3d 327, 330 (*Zeran*).) Section 230(c)(1) thus immunizes providers of interactive computer services (service providers) and their users from causes of action asserted by persons alleging harm caused by content provided by a third party. This form of immunity requires (1) the defendant be a provider or user of an interactive computer service; (2) the cause of action treat the defendant as a publisher or speaker of information; and (3) the information at issue be provided by another information content provider. (*Gentry v. eBay, Inc.* (2002) 99 Cal.App.4th 816, 830 (*Gentry*); *Murphy v. Twitter, Inc.* (2021) 60 Cal.App.5th 12, 24 (*Murphy*); *Barnes v. Yahoo!, Inc.* (9th Cir. 2009) 570 F.3d 1096, 1100-1101 (*Barnes*).)

“The CDA—of which section 230 is a part—was enacted in 1996.” (*Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal.App.4th 790, 802 (*Delfino*).) “Its ‘primary goal ... was to control the exposure of minors to indecent material’ over the Internet.” (*Ibid.*, quoting *Batzel v. Smith* (9th Cir. 2003) 333 F.3d 1018, 1026.) “Thus, an ‘important purpose of [the CDA] was to encourage [Internet] service providers to self-regulate the dissemination of offensive materials over their services.’ ” (*Ibid.*, quoting *Zeran, supra*, 129 F.3d at p. 331.) Section 230, subdivision (c)(2) consequently immunizes service providers who endeavor to restrict access to objectionable material.⁶

A second, but related, objective of the CDA “was to avoid the chilling effect upon Internet free speech that would be occasioned by the imposition of tort liability upon companies that do not create potentially harmful messages but are simply intermediaries for their delivery.” (*Delfino, supra*, 145 Cal.App.4th at pp. 802-803.) The legislative history reflects that Congress was responding to a New York trial court case where “a service provider was held liable for defamatory comments posted on one of its bulletin boards, based on a finding that the provider had adopted the role of ‘publisher’ by actively screening and editing

⁶ Section 230(c)(2) provides:

[n]o provider or user of an interactive computer service shall be held liable on account of--

(A) any action voluntarily taken in good faith to restrict access to or availability of material that the provider or user considers to be obscene, lewd, lascivious, filthy, excessively violent, harassing, or otherwise objectionable, whether or not such material is constitutionally protected; or

(B) any action taken to enable or make available to information content providers or others the technical means to restrict access to material described in paragraph (1).

postings.” (*Barrett v. Rosenthal* (2006) 40 Cal.4th 33, 44 (*Barrett*)). “ ‘Fearing that the specter of liability would ... deter service providers from blocking and screening offensive material,’ ” Congress forbid “ ‘the imposition of publisher liability on a service provider for the exercise of its editorial and self-regulatory functions.’ ” (*Id.*, quoting *Zeran, supra*, 129 F.3d at p. 331.) Thus, section 230, subdivision (c)(1) “ ‘confer[s] broad immunity on Internet intermediaries’ ” in “ ‘a strong demonstration of legislative commitment to the value of maintaining a free market for online expression.’ ” (*Hassell, supra*, 5 Cal.5th at p. 539, quoting *Barrett, supra*, 40 Cal.4th at p. 56.)

The Ninth Circuit has stated that “any activity that can be boiled down to deciding whether to exclude material that third parties seek to post online is perforce immune under section 230.” (*Fair Hous. Council v. Roommates.com, LLC* (9th Cir. 2008) 521 F.3d 1157, 1170–1171 (*Roommates*); see also *Riggs v. MySpace, Inc.* (9th Cir. 2011) 444 Fed.App’x. 986, 987 [district court properly dismissed claims “arising from MySpace’s decisions to delete Riggs’s user profiles on its social networking website yet not delete other profiles Riggs alleged were created by celebrity imposters”].) California opinions have similarly reasoned that this “type of activity”—“to restrict or make available certain material”—“is expressly covered by section 230.” (*Doe II v. MySpace Inc.* (2009) 175 Cal.App.4th 561, 572–573 [describing “the general consensus to interpret section 230 immunity broadly, extending from *Zeran* ...”]; see also *Hassell, supra*, 5 Cal.5th at p. 537 [California “courts have followed *Zeran* in adopting a broad view of section 230’s immunity provisions”].)

In short, “[n]umerous courts have held the CDA bars claims based on a failure to remove content posted by others.” (*Cross v. Facebook, Inc.* (2017) 14 Cal.App.5th 190, 207 [citing cases].)

Consistent with the language of section 230(c)(1), these cases do not question the service provider’s motive in deciding whether to remove content from its service. (See *Hassell, supra*, 5 Cal.5th at p. 540 [noting that *Barrett* voiced “qualms” that *Zeran*’s interpretation of section 230 provides blanket immunity for those who intentionally redistribute defamatory statements, but held “these concerns were of no legal consequence” where principles of statutory interpretation compelled a broad construction].) Notably, section 230, subdivision (c)(2)(A) expressly includes a “good faith” requirement for immunity from claims arising from service providers’ actions in restricting access to certain content. But section 230, subdivision (c)(1) has no good faith requirement. (See *Levitt v. Yelp! Inc.* (N.D.Cal. Oct. 26, 2011, No. C-10-1321 EMC) 2011 U.S.Dist.LEXIS 124082, at *20–29, aff’d (9th Cir. 2014) 765 F.3d 1123 [section 230(c)(1) immunity applied to allegations that Yelp manipulated plaintiffs’ user reviews in order to induce them to pay for advertising].) “That § 230(c)(2) expressly provides for a good faith element omitted from § 230(c)(1) indicates that Congress intended not to import a subjective intent/good faith limitation into § 230(c)(1).” (*Id.* at *23–24; see also *Lewis v. Google LLC* (N.D.Cal. 2020) 461 F. Supp. 3d 938, 953 [“only subdivision (c)(2), not subdivision (c)(1), requires any ‘good faith’ ”]; *Spy Phone Labs LLC v. Google Inc.* (N.D.Cal. Oct. 14, 2016, No. 15-cv-03756-KAW) 2016 U.S.Dist.LEXIS 143530, at *26 [“Section 230(c)(1) immunity ... by its plain terms does not require good faith”].)

i. Application

Defendant argues that all of the causes of action in the complaint are barred by section 230.

Section 230 immunity applies requires (1) the defendant be a provider or user of an interactive computer service; (2) the cause of action treat the defendant as a publisher or speaker of information; and (3) the information at issue be provided by another information content provider. (*Gentry, supra*, 99 Cal.App.4th at p. 830; *Murphy, supra*, 60 Cal.App.5th at p. 24; *Barnes, supra*, 570 F.3d at pp. 1100-1101.)

The parties do not dispute that the third element is met. But, Plaintiff disputes whether Google is an interactive computer service with regard to each of the products claimed to be defective, which include Google Chromebooks, the ChromeOS operating system, Chrome browser, the Google Workspace for Education, and the Admin Console. “Section 230 defines an interactive computer service as any information service, system, or access software provider that provides or enables computer access by multiple users to a computer server, including specifically a service or system that provides access to the Internet and such systems operated or services offered by libraries or educational institutions. (§ 230(f)(2).)” (*Hassell, supra*, 5 Cal.5th at p. 535.)

Google contends that, because its products provide internet access, it is an interactive computer service within the meaning of section 230, subdivision (f). Plaintiff counters that Google is not an interactive computer service with respect to the Google Workspace for Education (“GWFE”) and the Admin Console. Plaintiff contends that these are both suites of applications that do not enable internet access. The Court finds that Google is an interactive computer service for the purposes of this demurrer. (*Kathleen R. v. City of Livermore* (2001) 87 Cal.App.4th 684, 692 [“Respondent [city] provides an ‘interactive computer service’ in this case because its library computers enable multiple users to access the Internet.”]; *Barnes, supra*, 570 F.3d at p. 1101 [concluding that as an operator of a website, Yahoo acts as a provider of an interactive computer service].) While Plaintiff contends that the GWFE and Admin console do not provide internet access, the basis for Google’s liability in the Complaint its provision of unrestricted internet access to children, allowing them to view harmful content. Moreover, based on the text of the Complaint as pled, it is not clear that any alleged defects with the GWFE and Admin console form the basis of any of the causes of action. Each of the five causes of action incorporate the preceding paragraphs by reference. (Complaint, ¶¶ 220, 242, 258, 274, 290.) But, in paragraph 221 of the Complaint, Plaintiff limits the products the Complaint addresses: “At all relevant times, Google designed, developed, managed, operated, tested, produced, labeled, marketed, advertised, promoted, controlled, sold, supplied, distributed, and benefited from its *Chromebooks, ChromeOS, and Chrome web browser* (collectively, ‘Google’s Products’ or ‘Products’) used by Plaintiff Z.G.” (Complaint, ¶ 221, *italics added*.) This limited definition, used throughout the text of the causes of action, excludes the GWFE and Admin console.

The parties also dispute whether the causes of action in the Complaint treat Defendant as a publisher. “At common law, a publisher was someone who intentionally or negligently disseminated information to third parties.” (*Henderson v. Source for Pub. Data, L.P.* (4th Cir. 2022) 53 F.4th 110, 121 (*Henderson*).) Traditional publisher liability held that if a publisher took upon itself the task of moderating or editing the content that appeared within its pages, it became responsible for anything tortious written there. (*Doe v. Internet Brands, Inc.* (9th Cir. 2016) 824 F.3d 846, 851-852 (*Internet Brands*).) “[A] Claim only treats the defendant as the publisher or speaker of any information under [Section 230, subd. (c)(1)] if it (1) bases the defendant’s liability on the disseminating information to third parties and (2) imposes liability based on the information’s improper content. (*Henderson, supra*, 53 F.4th at p. 123.) A

defendant’s conduct as a publisher includes “reviewing, editing, and deciding whether to publish or withdraw from publication third-party content. (*Barnes, supra*, 570 F.3d at p. 1102.) But, it is not enough that a claim, including its underlying facts, stem from third-party content for section 230 immunity to apply. (*Calise v. Meta Platforms, Inc.* (9th Cir. 2024) 103 F.4th 732, 742 (*Calise*)). The proper analysis is to “examine closely the duty underlying each cause of action and decide if it derives from the defendant’s status or conduct as a publisher or speaker.” (*Est. of Bride v. YOLO Techs., Inc.* (9th Cir. 2024) 112 F.4th 1168, 1179.) In *Calise*, the Ninth Circuit court established a two-prong test regarding the applicability of Section 230 immunity: (1) the court must examine “what is the right from which the duty springs”; and (2) “what is this duty requiring the defendant to do? If it obliges the defendant to monitor third-party content—or else face liability, then that too is barred by § 230(c)(1).” (*Calise, supra*, 103 F.4th at p. 742.)

Defendant contends that all five causes of action are barred by both subdivision (c)(1) and subdivision (c)(2) of section 230. Here, Plaintiff’s Complaint contains three main classes of claims, those involving improper design (the strict liability product design and negligent product design claims), those involving failure to warn (the strict liability failure to warn and negligent failure to warn claims, and a general negligence claim. The main thrust of Plaintiffs product design and negligence claims is that Defendant created a dangerous situation by allowing unfettered access to the internet. (See, e.g., Complaint, ¶¶ 5, 9-12, 14-16, 20, 30, 34, 40, 42-43, 57, 130.) The Complaint pleads that the internet is dangerous because of the content it contains. (See Complaint, ¶¶ 30 [“Google’s Products fail to perform as safely as an ordinary consumer would expect when used by children at school or for school purposes because, by default, they give children largely unrestricted access to the internet, where Google knows children are likely to be exposed to harmful content, such as pornography and ultraviolence, and harmful communications, such as cyberbullying and sexual predation.”]; 40 [“But the internet is inherently dangerous for children. It facilitates access to an array of harmful content and communications, such as websites and platforms intended exclusively for those 13 and older; explicit, obscene, and disturbing images and videos; exploitative products and services designed to addict users; invasive data practices; and—as in this case—online predation.”].)

But, Defendant’s alleged duty arises under the Complaint from its failure to design its products to remove internet access or allow school staff or parents to limit such access. (Complaint, ¶¶ 94 [Google “should not design those Products to permit and promote broad internet access by default”], 267 [“Google breached its duty in designing its Products.”], 305 [“Google breached its duty of care owed to Z.G. through its affirmative malfeasance, actions, business decisions, and policies in the development, setup, management, maintenance, operation, marketing, advertising, promotion, supervision, and control of its Products. Those breaches include: . . . designing its Products to facilitate and encourage broad internet access; . . . designing its Products to encourage school-aged children to broadly access the internet; . . . failing to design its Products so they can be made safe by third parties, including school personnel and parents; . . . designing its Products in a manner that prevents third parties, including school administrators or parents, from configuring it for safe use; . . . failing to implement effective parent access, monitoring, and controls despite knowing that its Products would be used in the home environment . . .”].) Therefore, the duties underlying the two product defect causes of action and the negligence cause of action are not derived from Defendant’s status as a publisher or speaker. (See *Calise, supra*, 103 F.4th at p. 742.) In other words, Defendant could satisfy its duty regarding the design of the products without

monitoring, removing, or publishing content. (See *Lemmon v. Snap, Inc.* (9th Cir. 2021) 995 F.3d 1085, 1092.) As a result, these claims are not barred by section 230.

As to the failure to warn claims specifically, the thrust of those claims is that Google did not warn Plaintiff's parents regarding the alleged design flaw, which, as discussed above, Plaintiff alleges is unfettered internet access in products for children. (See Complaint, ¶¶ 250 ["Google's Products are defective and unreasonably dangerous because, among other reasons described herein, Google failed to exercise reasonable care to inform consumers—including the District, parents, and students—that: . . . its Products provided inadequate restrictions to and monitoring of user access and use of the internet; . . . its Products are designed to promote and encourage persistent and broad internet access . . ."], 278-282.) Thus, "[t]he duty to warn allegedly imposed by California law would not require [Google] to remove any user content or otherwise affect how it publishes or monitors such content." (*Internet Brands, supra*, 824 F.3d at p. 851.) Any alleged failure to warn could be cured by simply informing school staff and parents regarding the risks of unmonitored internet access and would not require Google to take any publishing-related actions.

Defendant also asserts that Plaintiffs' claims are barred by subdivision (c)(2)(B) of section 230, which provides that no interactive computer service provider shall be held liable "on account of . . . any action taken to enable or make available to information content providers or others the technical means to restrict access to material" that "the provider or user considers to be obscene, lewd, lascivious, filthy, excessively violent, harassing, or otherwise objectionable[.]" (§ 230, subd. (c)(2)(A)&(B).) Defendant contends that it has taken such action by providing administrative tools that can be used by school districts to restrict access to harmful materials. But, to the extent Plaintiff is making a claim based on the administrative tools, those claims are not separated into separate causes of action from the claims based on the provision of other Google products. As a demurrer does not lie to a portion of a cause of action, the demurrer is not sustainable on this ground. (See *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682.)

The Court finds that section 230 immunity does not bar Plaintiff's claims.

2. Failure to State a Claim

i. Failure to State a Design Defect Claim

Defendant next asserts that Plaintiff has not stated a viable design defect claim. Specifically, it contends that no court has held that access to the internet constitutes a cognizable injury and that product defect claims do not extend to injuries caused by ideas or expression. As to the first point, this argument misses the mark. The Complaint alleges that Defendant specifically marketed the products for children, yet the design of the products rendered them unsafe for use by children. (See Complaint, ¶¶ 113-123.) Thus, Plaintiff does not plead that merely internet access harmed her but that children are allowed unfettered access without controls and without allowing the parents or the school district to control the access. Accordingly, the Court rejects this argument.

As to Defendant's latter point, the cases it cites are distinguishable. In *Walters v. Seventeen Mag.* (1987) 195 Cal. App. 3d 1119, 1122-1123, the Court of Appeal held that a magazine publisher was not liable for failing to investigate the safety of a product in an advertisement it published. In *Winter v. G.P. Putnam's Sons* (9th Cir. 1991) 938 F.2d 1033, 1036, the Court declined to find a publisher liable for injury that occurred based on improper information printed in a book about mushrooms, stating "we decline to expand products liability law to embrace the ideas and expression in a book." In *Bogard v. TikTok Inc.* (N.D. Cal. Feb. 24, 2025), No. 24-CV-03131-VKD [2025 U.S. Dist. LEXIS 32959, at *21], the Court of Appeal explained, "As framed by Plaintiffs, the alleged 'defect' is not 'content-agnostic,' but instead reflects a disagreement about 'ideas, content, and free expression upon which products liability claims cannot be based.' [Citations.]" Here, as discussed above, Plaintiff is not seeking to hold Defendant liable for publishing activities. Accordingly, these cases are inapposite.

ii. Causation

Defendant further asserts that Plaintiff has not adequately pled causation for each of the claims. It relies primarily on *Modisette v. Apple Inc.* (2018) 30 Cal.App.5th 136 (*Modisette*). In that case, a person drove while using the FaceTime application on his iPhone and crashed into another car, causing serious injury to two of the occupants and the death of a third. (*Id.* at p. 139.) The two survivors sued Apple, alleging that it should have implemented a safer iPhone design that would have automatically prevented drivers from using FaceTime while driving at highway speed. (*Id.* at p. 140.) The trial court sustained Apple's demurrer, in part due to a lack of causation, and dismissed the action. (*Id.* at p. 141.) In affirming the dismissal, the Court of Appeal accepted that the plaintiffs' alleged facts sufficiently established that Apple's design of the phone was a cause in fact of their injuries. (*Id.* at p. 153.) But, it concluded, "the tenuous connection between Apple's conduct and the [plaintiffs'] injuries bar[red] a finding of proximate causation." (*Id.* at p. 152.) It also expressed concern about the consequences of holding a cell phone company liable for producing a product that could distract a driver. (*Id.* at p. 149.) Here, as in *Modisette*, Google's design of the products is a but for cause of the alleged injury in that Plaintiff would not have access discord without the internet access provided by Google. Also as in *Modisette*, the harm that occurred in this case, namely exposure to explicit content on the internet is foreseeable. (See *id.* at p. 144.)

Here, however, the connection between the injury and Google's actions is much closer than that in *Modisette*. (*Modisette*, *supra*, 30 Cal.App.5th at p. 145 [there was not a 'close' connection between Apple's conduct and the Modisettes' injuries"]; *id.* at p. 146 ["Apple's design of the iPhone did not put the danger in play."].) Here, the Complaint alleges that Plaintiff was harmed by messages sent between herself and Discord user lil_pain. (See, e.g., Complaint, ¶¶ 140-142, 144.) The Complaint pleads that Plaintiff used her school-issued Chromebook and the Chrome browser to create a Discord account. (Complaint, ¶ 15.) The design defects with the products allowed Plaintiff to access Discord. (Complaint, ¶ 130.) Plaintiff's parents did not provide her with any devices that could access the internet. (Complaint, ¶ 145.) Thus, unlike in *Modisette*, Plaintiff alleges that Defendant's actions "put the danger in play." (*Modisette*, *supra*, 30 Cal.App.5th at p. 146.)

"Like breach of duty, causation also is ordinarily a question of fact ... The issue of causation may be decided as a question of law only if, under undisputed facts, there is no room for a reasonable difference of opinion." (*Kurini v. Hanna & Morton* (1997) 55 Cal.App.4th

853, 864; see also *Capolungo v. Bondi* (1986) 179 Cal.App.3d 346, 354 [“the issue of proximate cause ordinarily presents a question of fact. However, it becomes a question of law when the facts of the case permit only one reasonable conclusion.”].) Here, the issue of causation is better left to a trier of fact as Defendant has not shown that causation fails as a matter of law. Accordingly, for the purposes of this demurrer, Defendant’s causation argument is rejected.

iii. Failure to Warn

Defendant contends that the second cause of action for strict liability failure to warn and the fourth cause of action for negligent failure to warn fail to state a claim. “When a plaintiff asserts a product liability case based on failure to warn, the plaintiff must prove (1) the manufacturer knew, or should have known of the risk inherent in the product; (2) there were no warnings or instructions, or those provided were inadequate; (3) the absence of warnings made the product inherently dangerous; (4) the absence of adequate warnings or instructions was the proximate cause of plaintiff’s injury. [Citation.]” (*In re Fuel Industry Climate Cases* (2026) 117 Cal.App.5th 882, 893.)

“To succeed on a negligent failure-to-warn claim, the plaintiff has the burden to prove that ‘a reasonably prudent manufacturer would have known and warned about’ the risk. [Citation.] To succeed on a strict liability failure-to-warn claim, the plaintiff need only prove that the manufacturer ‘did not adequately warn of a particular risk that was known or knowable in light of the generally recognized and prevailing best scientific and medical knowledge available at the time of manufacture and distribution.’ [Citation.] Whether asserting a negligent or a strict liability failure-to-warn claim, the plaintiff must also establish that the manufacturer’s failure to warn ‘[was] a substantial factor in causing [the plaintiff’s] injury.’ [Citations.]” (*Himes v. Somatics, LLC* (2024) 16 Cal.5th 209, 222-223.)

Defendant argues that it was the school district that modified Plaintiff’s laptop, thereby allowing access to Discord and that Discord is known to be dangerous, therefore, Defendant had no duty to warn. As to the first contention, Defendant relies on Exhibit A to its request for judicial notice, namely a complaint filed by Plaintiff in Kern County involving the school district. There, Plaintiff alleges that the school district encouraged the use of Discord. (See Defendant’s Request for Judicial Notice, Ex. A, ¶¶ 13-15.) But, the portion of the Kern County complaint Defendant relies on does not indicate that the school district modified Plaintiff’s laptop to allow access to Discord, it only states that the district encouraged the use of Discord.

Defendant also asserts that Discord is known to be a dangerous platform and, therefore it had no duty to warn of its dangers. The Complaint pleads that “Discord has a reputation for enabling online predation of children, including coercing them to produce sexual and self-harm content.” (Complaint, ¶ 15.) “There is no duty to warn of known risks or obvious dangers.” (*Chavez v. Glock, Inc.* (2012) 207 Cal.App.4th 1283, 1304.) Plaintiff counters that she does not plead failure to warn of the dangers of Discord; rather, she pleads that Defendant failed to warn her parents and the school district of the dangers of its products. Plaintiff’s argument is well-taken as the Complaint pleads failure to warn of the alleged design defect, which is unfettered and unsupervised access to the internet. (See Complaint, ¶¶ 104 [“Google fails to warn about the dangers its Products pose to children like Z.G.”]; 105 [“Google also fails to warn that, even if schools purchase and fully implement all the administrator safety tools and features that

Google offers, children will still be unsafe while using its Products.”]; 108-109 [Google failed to warn parents about the dangerousness of its products].)

The demurrer is OVERRULED as to the second cause of action for strict liability failure to warn and the fourth cause of action for negligent failure to warn.

3. Conclusion

The demurrer is OVERRULED in its entirety.

XVI. PRO HAC VICE APPLICATION

Plaintiff seeks pro hac vice admission for her counsel Julie U. Liddell.

A. Legal Background

A person who is not a licensee of the State Bar of California but who is an attorney in good standing of and eligible to practice before the bar of any United States court or the highest court in any state, territory, or insular possession of the United States, and who has been retained to appear in a particular cause pending in a court of this state, may in the discretion of such court be permitted upon written application to appear as counsel *pro hac vice*, provided that an active licensee of the State Bar of California is associated as attorney of record. No person is eligible to appear as counsel *pro hac vice* under this rule if the person is:

- (1) A resident of the State of California;
- (2) Regularly employed in the State of California; or
- (3) Regularly engaged in substantial business, professional, or other activities in the State of California.

(Cal. Rules of Court, rule 9.40(a).)

A person desiring to appear as counsel *pro hac vice* in a superior court must file with the court a verified application together with proof of service by mail in accordance with Code of Civil Procedure section 1013a of a copy of the application and of the notice of hearing of the application on all parties who have appeared in the cause and on the State Bar of California at its San Francisco office. The notice of hearing must be given at the time prescribed in Code of Civil Procedure section 1005 unless the court has prescribed a shorter period.

(Cal. Rules of Court, rule 9.40(c)(1).)

The application must state:

- (1) The applicant’s residence and office address;
- (2) The courts to which the applicant has been admitted to practice and the dates of admission;

- (3) That the applicant is a member in good standing in those courts;
- (4) That the applicant is not currently suspended or disbarred in any court;
- (5) The title of court and cause in which the applicant has filed an application to appear as counsel *pro hac vice* in this state in the preceding two years, the date of each application, and whether or not it was granted; and
- (6) The name, address, and telephone number of the active licensee of the State Bar of California who is attorney of record.

(Cal. Rules of Court, rule 9.40(d).)

B. Merits of the Motion

Counsel's declaration provides all of the required information described above. Plaintiff's application to have Julie Liddell admitted pro hac vice is GRANTED.

XVII. CONCLUSION

Defendant's demurrer is OVERRULED in its entirety. Plaintiff's application to have Julie Liddell admitted pro hac vice is GRANTED.

The Court will prepare the order.

- oo0oo0 -

- oo0oo -

- 00000 -

Calendar Line 7

Case Name: *Veronica Silva v. Reyes Coca-Cola Bottling, L.L.C., et al.*
Case No.: 25CV479934

This is a class action arising from defendant Reyes Coca-Cola Bottling L.L.C.'s alleged wage and hour violations.

Before the Court is Defendant's motion to compel arbitration, dismiss class claims, and stay civil proceedings, which is opposed. As discussed below, the Court GRANTS Defendant's motion to compel arbitration, DISMISSES Plaintiff's class claims, and STAYS this action pending the outcome of the arbitration.

XVIII. BACKGROUND

According to the allegations of the operative complaint ("Complaint"), Plaintiff worked for Defendants from March 7, 2022 through September 12, 2025. (Complaint, ¶ 20.) She performed various duties, including, among other things, conducting store visits, building product displays, ensuring product placement and compliance, maintaining customer relationships, and performing sales and merchandising tasks. (*Ibid.*) Defendants failed to: pay wages, including minimum and overtime wages; provide meal and/or rest periods or compensation in lieu thereof; timely pay wages during employment; provide compliant wage statements; timely pay wages due upon separation; reimburse for necessary business expenses.

On November 12, 2025, Plaintiff initiated this action with the filing of the Complaint, which asserts the following causes of action: (1) Violation of Cal. Labor Code §§ 1194, 1197, and 1197.1 (Minimum Wages) and Cal. Code of Regulations, Title 8, § 11040 (Split Shift Premiums); (2) Violation of Cal. Labor Code §§ 510 and 1198 (Unpaid Overtime); (3) Violation of Cal. Labor Code §§ 226.7 and 512(a) (Meal Break Violations); (4) Violation of Cal. Labor Code § 226.7 (Rest Break Violations); (5) Violation of Cal. Labor Code §§ 204 and 210 (Wages Not Timely Paid During Employment); (6) Violation of Cal. Labor Code § 226(a) (Wage Statement Violations); (7) Violation of Cal. Labor Code §§ 201, 202, and 203 (Untimely Final Wages); (8) Violation of Cal. Labor Code §§ 2800 and 2802 (Failure to Reimburse Necessary Business Expenses); and (9) Violation of Cal. Business & Professions Code §§ 17200, et seq.

XIX. REQUESTS FOR JUDICIAL NOTICE

A. Defendant's Request

Defendant requests judicial notice of the JAMS Employment Arbitration Rules and Procedures: Exhibit A.

Evidence Code section 452, subdivision (h), permits the Court to take judicial notice of items that are "not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." (Evid. Code ¶ 452, subd. (h).) Thus, the Court will take judicial notice of the JAMS Rules and Procedures.